

Court No. - 21

Case :- WRIT - C No. - 19274 of 2023

Petitioner :- Gaya Prasad

Respondent :- U.P.Power Corporation Ltd. And 3 Others

Counsel for Petitioner :- Chandra Kumar Singh, Awadhesh Kumar Pandey, Santosh Kumar Srivastava

Counsel for Respondent :- Krishna Agarawal, Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. The petitioner has challenged the order of final assessment dated 21.03.2023.
2. The specific case of the petitioner is that he was not served with any notice of provision assessment.
3. Learned counsel for the respondent-Electricity Department Shri N.K. Tiwari states that the impugned recovery has been withdrawn and that petitioner has been issued a fresh notice for providing opportunity of hearing to him.
4. Having regard to the aforesaid statement, we quash the order of final assessment dated 21.03.2023 and leave it open to the respondents to proceed strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code while passing fresh order.
5. The petition stands disposed of accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 31.5.2023

Rama Kant